

24STCV24154 24STCV24154

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Case Number: 24STCV24154 Hearing Date: August 18, 2026 Dept: 300

CASE NUMBER: 24STCV24154

CASE NAME: Connor Air Conditioning and Refrigeration,
Inc. vs. Carra J Contreras

TYPE OF MOTION: Motion for Leave to Amend Complaint

FILING PARTY: Plaintiff Connor Air
Conditioning and Refrigeration, Inc.

RESPONDING

PARTY: Defendants Matthew Contreras
and Carra J. Contreras

HEARING DATE: August 18, 2026

Instant Motion

Connor Air moves the Court, pursuant to Code of Civil
Procedure sections 473(a)(1) and 576, for an order permitting leave to file a
first amended complaint (FAC).

Evidentiary Objections

Connor Air submits a total of ten (10) evidentiary
objections to the declarations of Carra J. Contreras and Rosemary Amezcua-Moll.

Sustain: 1-4 (Irrelevant), 5 (Improper Legal

Conclusion/Lacks Personal Knowledge), 6 (Improper Legal Conclusion / Speculation), (8) Improper Legal Conclusion), (9) (Lack Personal Knowledge / Speculation), (10) (Argument / Improper Conclusion / Speculation)

Overrule:

7

Discussion

Connor Air moves the Court, pursuant to Code of Civil Procedure sections 473(a)(1) and 576, for an order permitting leave to file a first amended complaint (FAC).

“[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings.”² (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.)³ “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 56-66; cf. Arthur L. Sachs, Inc. v. City of Oceanside (1984) 151 Cal.App.3d 315, 324 (denial of leave to amend on the eve of trial was error absent a showing a prejudice).)

Here, Connor Air seeks leave to file a FAC to add “material facts, cause of action, and [] facts pertaining to a new Defendant – Matthew Contreras – whose role as a direct participant in the charged cash-skimming scheme was not and could not have been known at the time the original complaint was filed in September 2024, and was confirmed for the first time through sworn testimony at his deposition on May 26, 2026.” (Motion, p. 1.) Further, the proposed amendment “adds a cause of action under Penal Code section 496(c) for civil theft...which could not have been specifically pled without the forensic accounting analysis and third-party bank records that became available in April 2026.” (Ibid.)

The instant motion complies with California Rules of Court, rule 3.1324. (DeClercq Decl., ¶¶ 3-4, 14-17, 19, 23, Exhibit A; Connor Decl., ¶¶ 18-21.)

In opposition, Defendant Matthew Contreras argues that leave to amend should be denied because of Connor Air’s unreasonable delay in seeking leave to amend which creates substantial prejudice to Matthew Contreras.

(Opposition, p. 3-4.) However, Matthew Contrera's claims of prejudice are unavailing and delay alone is insufficient grounds for denial of leave to amend. If the delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case even if sought as late as the time of trial. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Further, the Court does not find that Connor Air unduly delayed in bringing the instant motion as the facts giving rise to the amendment were not discovered until April and May of 2026. (See DeClercq Decl., ¶¶ 14-17; Connor Decl., ¶¶ 18-21.)

Further, Defendant Matthew Contreras argues that leave should be denied because "the amendment is objection on numerous grounds," specifically, Matthew Contreras argues that the amendment fails to state sufficient causes of action against him and further, is barred by the applicable statute of limitations. (Opposition, p. 5.) However, this is not a cognizable basis to deny leave to amend. Rather, in ruling on a motion for leave to amend a pleading, the court does not consider the merits of the proposed amendment, because "the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings." *¿* (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)*¿*

Accordingly, the motion is GRANTED as the Court finds that good cause exists to allow Connor Air to file the proposed amended complaint and the instant motion complies with the requirements of California Rules of Court, rule 3.1324.

Conclusion

Based on the foregoing, the motion is GRANTED. Connor Air is ORDERED to file and serve the proposed First Amended Complaint within ten (10) days of this order.